

Form No: HCJD /A38
JUDGMENT SHEET

IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

JUDGMENT

Civil Revision No. **280 of 2025**

Mst. Nasreen Fatima Versus Muhammad Abbas Khan etc.

Date of Hearing: **10.03.2025**

Petitioner by: Syed Tajamul Hussain Bukhari,
Advocate.

MASUD ABID NAQVI, J. Concise facts of this civil revision are that the plaintiff/petitioner filed a suit for specific performance of an oral agreement to sell & cancellation of mutation No.2785 dated 10.07.2017 with the contention that the defendants No.1 to 3/respondents No.1 to 3 orally agreed to sell the suit land measuring 12 Kanals and 10 Marlas for a sale consideration of Rs.500,000/- and out of sale consideration, an amount of Rs.300,000/- was received by them on 18.05.2017. The defendant No.2/respondent No.2 sold land measuring 2-Kanals 2-Marlas from the suit land to defendant No.4/respondent No.4 vide mutation No.2785 dated 10.07.2017, hence the suit. The defendants/respondents contested the suit by filing a joint written statement and specifically denied the oral agreement and admitted the sale of land vide mutation No.2785 to defendant No.4 and also raised legal as well as factual objections.

2. Out of divergent pleadings of the parties, issues were framed by the learned trial Court. The parties produced their respective

evidence and after recording the same, learned trial court partially decreed the suit to the extent of 10-Kanals, 8-Marlas against the defendants No.1 to 3, whereas the suit of plaintiff/petitioner for cancellation of mutation No.2785 dated 10.07.2017 against the respondent No.4 was dismissed vide impugned judgment and decree dated 25.07.2024. Feeling aggrieved, the plaintiff/petitioner filed an appeal and learned Additional District Judge, Khanewal vide judgment & decree dated 05.12.2024 dismissed the appeal. Being dissatisfied, the plaintiff/petitioner has filed the instant Revision Petition and challenged the validity of the judgments and decrees passed by the learned Courts below.

3. I have heard the arguments advanced by the learned counsel for the plaintiff/petitioner and perused the record.

4. This is second round of litigation amongst the plaintiff/petitioner & defendants No.1 to 3/respondents No.1 to 3. The plaintiff filed a suit for specific performance against the father of the defendants No.1 to 3, which was not only dismissed on 17.11.2001 but her appeal & second regular appeal were also dismissed by the learned appellate Court and by this Court. The plaintiff's second regular appeal was dismissed on 05.12.2016. The case of plaintiff is that after the dismissal of second regular appeal, the defendants No.1 to 3 orally agreed to sell the suit land with enhanced sale consideration. The defendants No.1 to 3 alongwith defendant No.4 filed joint contesting written statement wherein the defendants No.1 to 3 denied the oral agreement as claimed by the

plaintiff and acknowledged the sale of land measuring 2-Kanals & 2-Marlas from the suit land by defendant No.2/respondent No.2 to defendant No.4/respondent No.4 through mutation No.2785 dated 10.07.2017 but during litigation, plaintiff & defendants No.1 to 3 mysteriously entered into a compromise through compromise deed/Ex.C-1 and also recorded their statements in favour of the plaintiff before the learned trial Court on 03.06.2020. Hence, the defendant No.4/respondent No.4 who purchased land from defendant No.2/respondent No.2 through mutation No.2785 dated 10.07.2017 only contested the suit of plaintiff. Although, defendant No.2/respondent No.2/seller signed compromise deed/Ex.C-1 and recorded his statement before the learned trial Court but neither challenged the mutation No.2785 dated 10.07.2017 entered/sanctioned in favour of defendant No.4/respondent No.4 or initiated any criminal proceedings against defendant No.4/respondent No.4 nor appeared as a witness in witness box before the learned trial Court to clarify which of his stance was correct out of two contradictory rather opposite stances. Even the plaintiff herself opted not to appear before the learned trial court and to make her statement on oath as required by law for appearance of a witness to take oath before the court for a correct statement. By minutely going through the Special Power of Attorney/Ex.P-1, the plaintiff/petitioner appointed her son as an attorney on the reasons/grounds, reproduced as "من مقررہ ہاٹ، بلڈ پریشر، شوگر

ذہنی دباؤ، ڈپریشن کی مریضہ ہے۔ قوت سماعت و بصارت بھی متاثر ہے۔ قانونی پیچیدگیوں اور عدالتی کارروائی سے ناواقف ہے۔۔۔"

and the attorney namely Waqas appeared as PW-1 and

deposed the reasons/grounds for plaintiff's non-appearance, also reproduced as "۔۔۔ مدعیہ دل کی مریضہ ہے اور ڈپریشن ذہنی دباؤ ہے اس لیے شہادت دینے کے قابل نہ ہے۔۔۔"

The plaintiff has not exhibited any medical report/documentary evidence to prove her health conditions, restricting her not to appear in the witness box. Therefore, the plaintiff's bad health is not proved and only grounds left for her non-appearance are قانونی پیچیدگیوں اور

عدالتی کارروائی سے ناواقف ہے which are not valid legal grounds for her non-appearance. The facts & circumstances of the case reflects that she did not appear before the court to depose in person just to avoid the test of cross-examination or with the intention to suppress some material facts from the court and it can safely be presumed adversely against the plaintiff/petitioner as provided in Article 129(g) of Qanun-e-Shahadat Order 1984.

5. Although, the defendants No.1 to 3 alongwith defendant No.4 filed joint contesting written statement by jointly denying the oral agreement to sell as pleaded by plaintiff and by acknowledging the sale of land measuring 2-kanal 2-marla from the suit land by defendant No.2/respondent No.2 to defendant No.4/respondent No.4 through sale mutation No.2785 and during litigation, defendants No.1 to 3/alleged sellers mysteriously entered into a compromise through compromise deed/Ex.C-1 and also recorded their statements in favour of plaintiff before the learned trial court but neither in compromise deed/Ex.C-1 nor in statements recorded before learned trial court, the defendants No.1 to 3 including defendant No.2/seller mentioned, disputed or denied the land sold to

defendant No.4 through sale mutation No.2785. The defendant No.4/respondent No.4 was/is contesting the claim of plaintiff on the basis of sale of land to him through mutation No.2785 duly admitted and never denied by rest of defendants including the defendant No.2 who sold the land to him and is also disputing the facts pleaded by the plaintiff, then the plaintiff/petitioner has to prove her rival claim of oral agreement to sell which was even denied by defendants No.1 to 3/alleged sellers in written statement with its ingredients i.e. time, day, date, month, year, names of witnesses and venue where the terms of agreement were verbally settled by adducing cogent, legal, relevant and unimpeachable evidence. The plaintiff neither herself appeared as witness nor produced witnesses to prove the oral agreement to sell and only produced her attorney as PW-1 who conceded during cross-examination about the sale of land to defendant No.4 before the filing of instant suit. Both the learned Courts below have properly appreciated the pleadings and discussed in detail the evidence produced by the contesting parties and thereafter reached at the correct conclusion regarding the controversy. Hence, the findings of learned Courts below are maintained/upheld.

6. With respect to interference in concurrent findings of the learned Courts below, the Hon'ble Supreme Court of Pakistan in a case reported as Administrator, Thal Development through EACO Bhakkar and others Vs Ali Muhammad (2012 SCMR 730) has held that:-

“concurrent findings of the trial court and appellate court in favour of appellants were based on proper

appreciation of evidence therefore, the same were not open to interference by the revisional court in exercise of its jurisdiction under section 115, C.P.C. which is primarily meant for correction of jurisdictional defect/error and material illegalities/ irregularities, resulting in miscarriage of justice to a party.”

7. Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in the impugned judgments and decrees passed by the learned Courts below, therefore, this civil revision is hereby **dismissed in limine.**

**(MASUD ABID NAQVI)
JUDGE**

Approved for reporting.

JUDGE